



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1496: DCS; policies; procedures

BLISS FLOOR AMENDMENT

1. Removes the requirement that the appointed attorney meet with a child who is at least five years old once a month.
2. Requires an appointed attorney, when determining a child's capacity, to consult with persons who have a significant relationship with the child and the child's family or an authorized representative of the child's family.
3. Requires county offices that employ the appointed attorneys to represent children in dependency or termination of parental rights proceedings to submit a report to the Governor and Legislature by January 15, 2027.
4. Requires the report to be compiled monthly for the period of June 1, 2026, through December 31, 2026, and outlines data requirements.
5. Repeals the reporting requirements on July, 1, 2027.

BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1496
(Reference to HEALTH & HUMAN SERVICES Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute

or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{[Orange lowercase underlining in double curly brackets]}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

{{~~[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]~~}} indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.

{{~~[Orange lowercase strikeout in double curly brackets]~~}} indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.

~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 8-221, Arizona Revised Statutes, is amended to
3 read:

4 8-221. Counsel right of juvenile, parent or guardian;
5 appointment; guardian ad litem

6 A. The court shall appoint an attorney for a child in all
7 delinquency proceedings that commence with a petition or that may involve
8 detention[, ~~dependency proceedings or termination of parental rights~~
9 ~~proceedings that are conducted pursuant to this title~~]. The court shall
10 appoint the [CHILD'S] attorney before the first hearing. The [CHILD'S]
11 attorney shall represent the child at all stages of the proceedings [~~and,~~
12 ~~in a dependency proceeding, through dismissal~~].

13 [B. THE COURT SHALL APPOINT AN ATTORNEY FOR A CHILD IN ALL
14 PROCEEDINGS INVOLVING DEPENDENCY OR TERMINATION OF PARENTAL RIGHTS BEFORE
15 THE FIRST HEARING. THE APPOINTED ATTORNEY SHALL DETERMINE WHETHER THE
16 CHILD HAS DIMINISHED CAPACITY THAT WOULD IMPACT THE CHILD'S ABILITY TO

1 EXPRESS THE CHILD'S OWN OPINION OR TO MAKE DECISIONS FOR THE CHILD. IN
2 MAKING THIS DETERMINATION, THE APPOINTED ATTORNEY SHALL CONSULT WITH THE
3 CHILD. ~~{{THE CHILD'S FAMILY AND ANY}}~~ OTHER INDIVIDUALS WHO KNOW THE CHILD
4 ~~{{OR WHO HAVE A SIGNIFICANT RELATIONSHIP WITH THE CHILD AND THE CHILD'S~~
5 ~~FAMILY OR AN AUTHORIZED REPRESENTATIVE OF THE CHILD'S FAMILY}}~~. ~~{{IF THE~~
6 ~~CHILD IS AT LEAST FIVE YEARS OF AGE, THE APPOINTED ATTORNEY SHALL MEET~~
7 ~~WITH THE CHILD NOT LESS THAN ONCE A MONTH.}}~~

8 C. IF AN ATTORNEY WHO IS APPOINTED PURSUANT TO SUBSECTION B OF THIS
9 SECTION DETERMINES THAT A NORMAL ATTORNEY-CLIENT RELATIONSHIP IS NOT
10 REASONABLY POSSIBLE TO MAINTAIN AND THAT THE CHILD IS NOT ABLE TO DIRECT
11 THE LEGAL REPRESENTATION DUE TO DIMINISHED CAPACITY OR THE CHILD'S
12 INABILITY TO EXPRESS THE CHILD'S OWN OPINION, THE APPOINTED ATTORNEY SHALL
13 USE SUBSTITUTED JUDGMENT TO DETERMINE WHAT THE CHILD WOULD DECIDE IF THE
14 CHILD WAS CAPABLE OF MAKING AN ADEQUATELY CONSIDERED DECISION WHEN
15 CONSIDERING WHAT IS IN THE BEST INTEREST OF THE CHILD. THE APPOINTED
16 ATTORNEY SHALL DO ALL OF THE FOLLOWING:

17 1. MAKE A GOOD FAITH EFFORT TO DETERMINE THE CHILD'S NEEDS AND
18 WISHES.

19 2. CONSULT WITH THE CHILD, ~~{{THE CHILD'S FAMILY AND ANY}}~~ OTHER
20 INDIVIDUALS WHO KNOW THE CHILD ~~{{OR WHO HAVE A SIGNIFICANT RELATIONSHIP~~
21 ~~WITH THE CHILD AND THE CHILD'S FAMILY OR AN AUTHORIZED REPRESENTATIVE OF~~
22 ~~THE CHILD'S FAMILY}}~~.

23 3. REPRESENT THE CHILD IN ACCORDANCE WITH THE DETERMINATION OF THE
24 CHILD'S NEEDS AND WISHES.

25 D. IF IN THE COURSE OF REPRESENTING THE CHILD AN ATTORNEY WHO IS
26 APPOINTED PURSUANT TO SUBSECTION B OF THIS SECTION REASONABLY BELIEVES
27 THAT A CHILD IS AT RISK OF SUBSTANTIAL PHYSICAL, FINANCIAL OR OTHER HARM
28 AND THAT THE CHILD DOES NOT HAVE THE CAPACITY TO ADEQUATELY ACT IN THE
29 CHILD'S OWN INTEREST, THE APPOINTED ATTORNEY SHALL DO EITHER OF THE
30 FOLLOWING:

31 1. INFORM THE COURT OF THE SUBSTANTIAL RISK OF HARM, TAKING INTO
32 ACCOUNT THE WISHES AND VALUES OF THE CHILD AND THE CHILD'S BEST INTERESTS
33 AND RESPECTING THE CHILD'S FAMILY AND SOCIAL CONNECTIONS.

34 2. REQUEST THAT THE COURT APPOINT A GUARDIAN AD LITEM FOR THE
35 CHILD.]

36 [B.] [E.] If a parent or guardian is found to be indigent and
37 entitled to counsel, the juvenile court shall appoint an attorney to
38 represent the person or persons unless the person knowingly, intelligently
39 and voluntarily waives counsel.

40 [C.] [F.] Before any court appearance that may result in
41 institutionalization or mental health hospitalization of a juvenile, the
42 court shall appoint counsel for the juvenile if counsel has not been
43 previously appointed or retained by or for the juvenile.

44 [D.] [G.] The county board of supervisors may fix a reasonable sum
45 to be paid by the county for the services of an appointed attorney.

46 [E.] [H.] In a county where there is a public defender, the public
47 defender may act as attorney in either:

48 1. A delinquency or incorrigibility proceeding when requested by
49 the juvenile court.

1 2. Any other juvenile proceeding that is conducted pursuant to this
2 title if the board of supervisors authorizes the appointment of the public
3 defender.

4 [F.] [I.] In all juvenile court proceedings in which the
5 dependency petition includes an allegation that the juvenile is abused or
6 neglected, the court may appoint a guardian ad litem to protect the
7 juvenile's best interests. This guardian ad litem shall be an
8 attorney. The guardian ad litem is not the child's attorney.

9 ~~[G.] [J.]~~ Any guardian ad litem or attorney appointed for a
10 juvenile shall meet with the juvenile before the preliminary protective
11 hearing, if possible, or within fourteen days after the preliminary
12 protective hearing. The guardian ad litem or [THE CHILD'S] attorney
13 ~~[appointed for the juvenile]~~ also shall meet with the juvenile before all
14 substantive hearings. On a showing of extraordinary circumstances, the
15 judge may modify this requirement for any substantive hearing.>>

16 Sec. 2. Section 8-468, Arizona Revised Statutes, is amended to
17 read:

18 8-468. Federal benefits; dependent children; application;
19 prohibition; accounting; notice; annual review

20 A. For all children in the care of the department of child safety,
21 the department ~~of child safety~~ shall determine whether each child is
22 receiving or eligible for benefits administered by the social security
23 administration or the veterans administration within sixty days after the
24 child enters the department's care. If the department ~~of child safety~~
25 determines that a child is eligible or may be eligible for federal
26 benefits, the department ~~of child safety~~ shall apply for the benefits on
27 behalf of the child.

28 B. If a child is already receiving benefits before entering the
29 department's care or if the department applies for benefits on behalf of
30 the child, the department shall ~~identify, in consultation with the child~~
31 ~~and the child's attorney, a representative payee in accordance with 20~~
32 ~~Code of Federal Regulations sections 404.2021 and 416.621 and shall apply~~
33 ~~to become the representative payee only if no other suitable candidate is~~
34 ~~available~~ APPLY TO SERVE AS THE REPRESENTATIVE PAYEE UNTIL SOMEONE OTHER
35 THAN THE DEPARTMENT IS APPOINTED TO SERVE AS THE REPRESENTATIVE PAYEE. If
36 the department ~~of child safety~~ is appointed to serve as the representative
37 payee, the department:

1. May not use the child's federal benefits, other benefits, savings or assets to pay for or to reimburse the department ~~of child~~ ~~safety~~ or this state for any of the costs of the child's care.

2. May use the child's federal benefits for the child's unmet needs beyond what the department ~~of child safety~~ is obligated, IS required or agrees to pay.

3. Shall establish an appropriate account to use and conserve the child's benefits in the child's best interest for current unmet needs and future needs in a manner consistent with federal and state asset and resource limits. The account may include any of the following:

48 (a) A special needs trust.

49 (b) A pooled special needs trust.

1 (c) An achieving a better life experience account established
2 pursuant to section 529a of the internal revenue code.

3 (d) Any other trust account determined not to interfere with social
4 security or asset limitations for any other benefit program.

5 4. In addition to the requirements ~~of~~ PRESCRIBED IN section
6 14-9115, shall provide an annual accounting as to the use, application or
7 conservation of the child's federal benefits to the child, the child's
8 attorney and the child's parents or guardians.

9 ~~5. Shall periodically review if someone other than the department~~
10 ~~is available to apply to assume the role of representative payee and could~~
11 ~~better serve in that role in the child's best interests.~~

12 5. FOLLOWING THE INITIAL APPLICATION TO SERVE AS THE REPRESENTATIVE
13 PAYEE, SHALL REMAIN THE REPRESENTATIVE PAYEE ONLY IF NO OTHER APPROPRIATE
14 PERSON IS AVAILABLE TO SERVE AS THE REPRESENTATIVE PAYEE. WITHIN THIRTY
15 DAYS AFTER THE APPLICATION TO SERVE AS THE REPRESENTATIVE PAYEE IS
16 APPROVED BY THE SOCIAL SECURITY ADMINISTRATION AND AT EACH SUBSEQUENT
17 REPORT AND REVIEW HEARING OR PERMANENCY PLANNING HEARING, THE DEPARTMENT
18 SHALL FILE WITH THE COURT DOCUMENTATION OF THE DEPARTMENT'S EFFORTS TO
19 IDENTIFY AN APPROPRIATE PERSON WHO IS OUTSIDE OF THE DEPARTMENT AND WHO
20 COULD BETTER SERVE AS THE REPRESENTATIVE PAYEE.

21 6. NOT LATER THAN AN ANNUAL SCREENING OR ON THE REQUEST OF THE
22 CHILD OR THE CHILD'S ATTORNEY, SHALL CONSULT WITH THE PARTIES TO THE CASE
23 TO DETERMINE IF AN APPROPRIATE PERSON WHO IS OUTSIDE OF THE DEPARTMENT,
24 AND ON APPROVAL BY THE SOCIAL SECURITY ADMINISTRATION, COULD BETTER SERVE
25 AS THE REPRESENTATIVE PAYEE. THE DEPARTMENT SHALL ALSO CONSULT WITH THE
26 PARTIES WHENEVER A CHANGE IN CIRCUMSTANCES OCCURS THAT MIGHT MAKE AN
27 APPROPRIATE PERSON WHO IS OUTSIDE OF THE DEPARTMENT AVAILABLE TO SERVE AS
28 THE REPRESENTATIVE PAYEE.

29 C. The department ~~of child safety~~ shall notify the child, the
30 child's parents, unless parental rights have been terminated, the child's
31 guardian, the child's current placement and the child's attorney of any
32 application, decision or appeal related to a child's federal benefits. In
33 providing notice of any denial of benefits, the department shall consult
34 with the child's attorney and appeal the denial if it is in the child's
35 best interests.

36 D. The department shall annually review cases of children in the
37 department's care to determine whether a child may have become eligible
38 for benefits after the department's initial assessment.

39 E. Notwithstanding any other law, on termination of the
40 department's responsibility for the child, the department shall release
41 any monies remaining to the child's credit pursuant to the requirements of
42 the funding source or, in the absence of any requirements, shall release
43 the remaining monies to:

44 1. The child, if the child is at least eighteen years of age or is
45 emancipated.

46 2. The person who is responsible for the child if the child is a
47 minor and IS not emancipated.

1 Sec. 3. Section 8-514.07, Arizona Revised Statutes, is amended to
2 read:

3 8-514.07. Kinship foster care: relative identification and
4 notification; due diligence search

5 A. If a child is taken into temporary custody, as part of the
6 ongoing search, the department shall use due diligence in an initial
7 search to identify and notify adult relatives of the child and persons
8 with a significant relationship with the child within thirty days after
9 the child is taken into temporary custody.

10 B. The search to identify adult relatives of the child or persons
11 with a significant relationship with the child must include:

- 12 1. An interview with the child's parent.
- 13 2. An interview with the child.
- 14 3. Interviews with identified adult relatives.
- 15 4. Interviews with other persons who are likely to have information
16 regarding the location of adult relatives of the child or persons with a
17 significant relationship with the child.
- 18 5. A comprehensive search of available records that are likely to
19 help identify and locate a person being sought, including:
 - 20 (a) Employment records.
 - 21 (b) Vehicle registration records.
 - 22 (c) Child support enforcement records.
 - 23 (d) Utility accounts.
 - 24 (e) Previous residential addresses.
 - 25 (f) Law enforcement records.
 - 26 (g) State department of corrections records.
- 27 6. Thorough inquiries by the court of the parties during case
28 hearings.
- 29 7. Any other means the department deems likely to identify adult
30 relatives of the child or persons with a significant relationship with the
31 child.

32 C. Within thirty days after the child is taken into temporary
33 custody and at each subsequent review and report hearing or permanency
34 planning hearing, the department shall file with the court ~~documentation~~
35 **AN INITIAL REPORT** regarding attempts made pursuant to this section or as
36 otherwise required by the court to identify and notify adult relatives of
37 the child and persons with a significant relationship with the child.
38 This ~~documentation~~ **INITIAL REPORT** shall include a detailed narrative
39 explaining the department's efforts to consider each potential placement
40 and the specific outcome. **THE DEPARTMENT SHALL UPDATE THE INITIAL REPORT**
41 **THAT IS FILED PURSUANT TO THIS SUBSECTION AT EACH SUBSEQUENT REPORT AND**
42 **REVIEW HEARING OR PERMANENCY PLANNING HEARING WITH ANY NEW INFORMATION**
43 **THAT HAS BEEN OBTAINED SINCE THE FILING OF THE LAST REPORT.**

44 D. The department shall provide notice to adult relatives of the
45 child and persons with a significant relationship with the child who are
46 identified through the search requirements of this section. The notice
47 shall do the following:

- 48 1. Specify that the child has been or is being removed from the
49 child's parental custody.

1 2. Explain the options an adult relative of the child or a person
2 with a significant relationship with the child has to participate in the
3 care or placement of the child.

4 3. Explain that financial assistance and other forms of support are
5 available to adult relatives of the child and persons with a significant
6 relationship with the child with whom the child is placed.

7 4. Describe the process for becoming a licensed foster parent and
8 the additional services and support that are available for children placed
9 in approved foster homes.

10 5. Require an adult relative of the child or a person with a
11 significant relationship with the child to respond within thirty days
12 after receiving notice that the child has been removed from the home.

13 E. If the child is not placed with an adult relative of the child
14 or person with a significant relationship with the child or the child is
15 placed with an adult relative or person with a significant relationship
16 with the child who is unable or unwilling to provide permanent placement
17 for the child, the department shall continue to conduct an ongoing search
18 for adult relatives of the child or persons with a significant
19 relationship with the child. ~~The department shall engage in search~~
20 ~~efforts~~

21 F. If, AFTER THE PERMANENCY HEARING HELD PURSUANT TO SECTION 8-862,
22 THE DEPARTMENT AND THE COURT DETERMINE THAT A CHILD IS PLACED WITH A
23 PROSPECTIVE PERMANENT PLACEMENT, THE DEPARTMENT MAY STOP SEARCH EFFORTS
24 UNLESS ordered by the court, a change in the child's placement occurs or a
25 party shows that the search is in the best interest of the child.

26 ~~F.~~ G. The department shall file with the court documentation of
27 both of the following:

28 1. The completed due diligence search efforts. This documentation
29 shall include:

30 (a) The names of and relevant information about adult relatives of
31 the child or persons with a significant relationship with the child.

32 (b) The steps taken by the department to locate and contact adult
33 relatives of the child or persons with a significant relationship with the
34 child.

35 (c) The responses received from adult relatives of the child or
36 persons with a significant relationship with the child.

37 (d) The dates of each attempted or completed contact with an adult
38 relative of the child or a person with a significant relationship with the
39 child.

40 (e) The reasons why an adult relative of the child or a person with
41 a significant relationship with the child was not considered for temporary
42 or permanent placement of the child.

43 2. All efforts for placement of the child through an interstate
44 compact agreement pursuant to section 8-548. This documentation shall
45 include:

46 (a) The names of adult relatives of the child or persons with a
47 significant relationship with the child who were considered for an
48 interstate placement.

1 (b) Any pending placement of the child through an interstate
2 compact agreement.

3 (c) All potential out-of-state placements outside of an interstate
4 compact agreement and the reasons such placements have not been initiated.

5 ~~G.~~ H. If an out-of-state placement option exists and the
6 department has failed to file a request with the receiving state pursuant
7 to the requirements of an interstate compact agreement pursuant to section
8 8-548, the court shall enter a finding that the department has not made a
9 due diligence search and shall order the department to file a request with
10 the receiving state pursuant to the terms of the interstate compact
11 agreement.

12 Sec. 4. Section 8-810, Arizona Revised Statutes, is amended to
13 read:

14 8-810. Missing; abducted; runaway children; notification;
15 training; audit

16 A. Immediately or within twenty-four hours after receiving a report
17 made pursuant to section 13-3620 or receiving information during the
18 course of providing services that indicates a child who is a ward of the
19 court or who is in the care of the department is missing, abducted or a
20 runaway and the child's location is unknown, the department shall notify
21 the appropriate law enforcement agency to make the record entry as
22 follows:

23 1. For an abducted child, the Arizona criminal justice information
24 system.

25 2. For an abducted, missing or runaway child, the national crime
26 information center missing person database.

27 B. Immediately or within twenty-four hours after receiving a report
28 of a missing, abducted or runaway child, the department shall do the
29 following:

30 1. Report information on the missing, abducted or runaway child to
31 the national center for missing and exploited children.

32 2. Unless it is determined by the primary investigative agency that
33 it will hinder investigation or location efforts: ~~;~~

34 (a) Contact the following persons to obtain information about the
35 child's disappearance:

36 ~~(a)~~ (i) The child's parents.

37 ~~(b)~~ (ii) The child's known relatives.

38 ~~(c)~~ (iii) The child's out-of-home caregivers.

39 ~~(d)~~ (iv) The child's attorney.

40 ~~(e)~~ (v) The child's guardian or guardian ad litem.

41 ~~(f)~~ (vi) The child's court appointed special advocate.

42 ~~(g)~~ (vii) The child's school, friends or household members or
43 other persons who may have relevant information about the circumstances
44 surrounding the child's abduction or disappearance.

45 ~~(h)~~ (viii) Any other persons known to the department who may have
46 relevant information regarding the child's location.

47 ~~3. Unless it is determined by the primary investigative agency that~~
48 ~~it will hinder investigation or location efforts,~~

1 (b) Provide a notice of disappearance in writing ~~and~~ OR
2 telephonically to the following persons:
3 ~~(a)~~ (i) The child's parents.
4 ~~(b)~~ (ii) The child's known relatives.
5 ~~(c)~~ (iii) The child's out-of-home caregivers.
6 ~~(d)~~ (iv) The child's attorney.
7 ~~(e)~~ (v) The child's guardian or guardian ad litem.
8 ~~(f)~~ (vi) The child's court appointed special advocate.
9 ~~(g)~~ (vii) A judicial officer in any judicial matter involving the
10 child.
11 ~~(h)~~ (viii) The duty assistant attorney general to initiate a
12 motion for a pickup.
13 ~~(i)~~ (ix) If the child is a member of an Indian tribe in this
14 state, the child's Indian tribe.
15 C. Immediately or within twenty-four hours after receiving a report
16 PURSUANT TO THIS SECTION, the department shall request the appropriate law
17 enforcement agency to determine if the situation meets amber alert
18 criteria or ~~silver~~ SEEK AND FIND alert criteria pursuant to section
19 41-1728. The appropriate law enforcement agency shall document its
20 response regarding amber alert or ~~silver~~ SEEK AND FIND alert criteria.
21 D. Within forty-eight hours after receiving a report of a missing,
22 abducted or runaway child, the department shall provide the local law
23 enforcement agency with, and the local law enforcement agency shall
24 provide to all local media outlets and post to social media platforms, all
25 of the following information regarding the child and, if known, the
26 child's abductor:
27 1. A complete physical description of the child and, if known, the
28 child's abductor.
29 2. The last known location of the child or, if known, the child's
30 abductor.
31 3. A description of the clothing the child or, if known, the
32 child's abductor was last known to be wearing.
33 4. A description of any vehicle that may be involved with the
34 child's disappearance.
35 5. Current photos of the child and, if available, the child's
36 abductor.
37 6. A law enforcement telephone number.
38 7. Information regarding any offered rewards.
39 E. The appropriate law enforcement agency shall update social media
40 platforms with updated information regarding the missing, abducted or
41 runaway child.
42 F. For a child who has been missing or abducted or who has been a
43 runaway for two or more years, the appropriate law enforcement agency
44 shall work, when possible, to create an age-appropriate progression image
45 of the child.
46 G. The department shall do all of the following on an ongoing basis
47 until a missing, abducted or runaway child is located or the child reaches
48 the age of majority:

1 1. Document in writing every effort the department has made to
2 locate the missing, abducted or runaway child within ten days after the
3 effort to locate the child is taken. The written document shall specify
4 the notifications and documentation sent to individuals and departments
5 pursuant to the requirements of this section.

6 2. Contact law enforcement every seven calendar days and document
7 the information provided and received.

8 3. For a child who has been missing or abducted or who has been a
9 runaway for two or more years, work with the national center for missing
10 and exploited children to create an age-progression image of the child.

11 H. The department shall immediately develop, refine, implement and
12 provide initial training to newly hired employees. A newly hired employee
13 must receive this initial training before any children are assigned to the
14 newly hired employee's caseload. The department shall conduct annual
15 training for department employees who have direct oversight of children
16 and the direct supervisors of those employees. The training shall include
17 department policies for locating missing, abducted or runaway children and
18 the requirements for ongoing efforts to locate a missing, abducted or
19 runaway child, unless it is determined by the primary investigative agency
20 that it will hinder investigation or location efforts. Monthly ongoing
21 department efforts shall include all of the following:

22 1. Continued contact with law enforcement agencies.

23 2. Continued contact with the child's parents, guardian or
24 custodian.

25 3. Continued contact with the child's known relatives.

26 4. Continued contact with current and former foster families of the
27 child.

28 5. Continued contact with the child's school.

29 6. Continued contact with known acquaintances of the child.

30 7. Continued in-person searching of locations and places where the
31 child may be found.

32 8. Continued review of any social media accounts that may be
33 associated with the child or the child's known acquaintances.

34 9. Continued efforts with law enforcement agencies in searching for
35 the child.

36 10. Continued search efforts with department field staff who have
37 access to databases that may help in the search for information or leads
38 regarding the missing, abducted or runaway child.

39 11. Referral to the department's office of child welfare
40 investigations for assistance if exigent circumstances exist.

41 12. Requesting that the appropriate law enforcement agency conduct
42 welfare checks at any location where the child may be.

43 I. Within twenty-four hours after a missing, abducted or runaway
44 child is located, the department shall do all of the following:

45 1. Inform all of the following:

46 (a) All law enforcement agencies involved in the child's case.

47 (b) The attorney general's office.

48 (c) The national center for missing and exploited children.

1 (d) Any individuals who have received notice pursuant to subsection
2 B, paragraph 3 of this section.

3 2. Have in-person contact with the child.

4 3. Obtain a medical exam for the child.

5 4. Assess the child's experiences while absent from care, including
6 screening to determine if the child is a sex trafficking victim, and
7 report to the appropriate law enforcement agency if it is determined that
8 the child is a sex trafficking victim.

9 5. Assess the appropriateness of the child returning to the child's
10 current placement.

11 6. Assess factors that contributed to the child's absence.

12 7. Determine the need for additional behavioral health services and
13 support.

14 8. Review the case to assess the primary factors that contributed
15 to the child being missing or abducted or a runaway and to the extent
16 possible and appropriate respond to those factors in current and
17 subsequent case decisions.

18 J. Within sixty days after September 14, 2024, the department shall
19 develop a checklist for department specialists. The checklist shall be
20 distributed to each caseworker to assist department specialists in
21 fulfilling the department's duties prescribed by this section. The
22 checklist shall have a mechanism to mark department duties as completed
23 within the timelines specified by this section.

24 K. Beginning ninety days after September 14, 2024, the department
25 shall provide a monthly report to the governor, the president of the
26 senate and the speaker of the house of representatives. The report shall
27 include all of the following:

28 1. The names of all current missing, abducted or runaway children.
29 The names of missing, abducted or runaway children shall be kept
30 confidential and may not be distributed outside of the monthly report.

31 2. An acknowledgement that the department made the notifications
32 prescribed by this section within the prescribed time frames. If the
33 department failed to make the notifications ~~with~~ WITHIN the prescribed
34 time frames, the department shall include a detailed explanation of the
35 reason why the notifications were not made within the prescribed time
36 frames.

37 3. The department's compliance with ongoing search efforts made to
38 locate missing, abducted or runaway children.

39 4. The department's compliance with subsection I of this section.

40 5. On the return of a runaway child to the department's care, the
41 reason why the child ran away.

42 L. Within one hundred fifty days after September 14, 2024 and on a
43 monthly basis thereafter, the department shall submit to the joint
44 legislative budget committee, the senate health and human services
45 committee and the house of representatives health and human services
46 committee, or their successor committees, a report that includes all of
47 the following:

48 1. The department's compliance with all of the requirements of this
49 section.

1 2. The number of missing, abducted and runaway children.

2 3. The number of missing, abducted and runaway children who have
3 been found.

4 4. The percentage of times the department was in compliance with
5 the requirements prescribed in subsections A, B, C and D of this section.

6 M. If the report submitted pursuant to subsection L of this section
7 shows a less than ninety-five percent compliance rate with the
8 requirements prescribed in subsection L, paragraph 4 of this section for
9 more than four consecutive or nonconsecutive months in a twelve-month
10 period, the department shall establish a missing, abducted and runaway
11 children unit within the department. The missing, abducted and runaway
12 children unit shall have at least four employees with at least one
13 employee available twenty-four hours a day. The missing, abducted and
14 runaway children unit may enter into contracts with any vendor necessary
15 to ensure the department is in compliance with this section. If the
16 missing, abducted and runaway children unit is established, the unit shall
17 submit a report to the governor, the president of the senate, the speaker
18 of the house of representatives and the joint legislative oversight
19 committee on the department of child safety established by section
20 41-1292. The report shall do all of the following:

21 1. Identify the reasons why the department is not in compliance
22 with the requirements prescribed in subsections A, B, C and D of this
23 section.

24 2. Identify the methods by which the missing, abducted and runaway
25 children unit will achieve a ninety-five percent compliance rate with the
26 requirements prescribed in subsections A, B, C and D of this section.

27 3. Include organizational changes that the department will make to
28 ensure compliance with the requirements prescribed in subsections A, B, C
29 and D of this section.

30 4. Recommend legislative changes that are necessary to ensure the
31 department's compliance with the requirements prescribed in subsections A,
32 B, C and D of this section.

33 N. The legislature may convene an oversight committee to address
34 problems and deviations from policy and procedure and recommend corrective
35 action plans. The legislature shall request an annual independent audit
36 of the department's compliance with this section. If the independent
37 audit determines that the department is not in compliance, the department
38 shall contract with a consulting firm that is licensed by this state for
39 investigative services. The consulting firm shall present recommendations
40 to the oversight committee on how to improve compliance with this section.

41 O. The legislature may convene the joint legislative oversight
42 committee on the department of child safety established by section 41-1292
43 to address concerns and deviations from policy and procedure and provide
44 recommendations. The legislature may request an annual independent audit
45 of the department's compliance with this section. If the independent
46 audit determines that the department is not in compliance, the independent
47 audit shall provide recommendations for improving the department's efforts
48 to locate missing, abducted or runaway children. If the joint legislative
49 oversight committee on the department of child safety determines that the

1 department, after the establishment of the missing, abducted and runaway
2 children unit, has failed to meet the requirements of subsection M of this
3 section for a period of more than two months, the department shall
4 contract with a consulting firm that is licensed by this state for
5 investigative services. The consulting firm shall present recommendations
6 to the joint legislative oversight committee **ON THE DEPARTMENT OF CHILD**
7 **SAFETY** on how to improve compliance with this section.

8 Sec. 5. Section 8-811, Arizona Revised Statutes, as amended by Laws
9 2024, chapter 47, section 5, is amended to read:

10 **8-811. Hearing process; definitions**

11 A. The department shall notify a person who is alleged to have
12 abused or neglected a child that the department intends to substantiate
13 the allegation in the central registry pursuant to section 8-804 and of
14 that person's right:

15 1. To receive a copy of the report containing the allegation.

16 2. To a hearing before the entry into the central registry.

17 B. The department shall provide the notice prescribed in subsection
18 A of this section by first class mail or by personal service no more than
19 fourteen days after completion of the investigation.

20 C. A request for a hearing on the proposed finding must be received
21 by the department within twenty days after the mailing or personal service
22 of the notice by the department.

23 D. The department shall not disclose any information related to the
24 investigation of the allegation except as provided in sections 8-456,
25 8-807, 8-807.01 and 13-3620.

26 E. If a request for a hearing is made pursuant to subsection C of
27 this section, the department shall conduct a review before the hearing.
28 The department shall provide an opportunity for the accused person to
29 provide written or verbal information to support the position that the
30 department should not substantiate the allegation. If the department
31 determines that ~~there is no probable cause that the accused person engaged~~
32 ~~in the alleged conduct~~ **THE PROPOSED FINDING IS NOT SUPPORTED BY A**
33 **PREPONDERANCE OF THE EVIDENCE**, the department shall amend the information
34 or finding in the report and shall notify the person and a hearing shall
35 not be held.

36 F. Notwithstanding section 41-1092.03, the notification prescribed
37 in subsection A of this section shall also state that if the department
38 does not amend the information or finding in the report as prescribed in
39 subsection E of this section within sixty days after it receives the
40 request for a hearing the person has a right to a hearing unless:

41 1. The person is a party in a pending civil, criminal or
42 administrative proceeding in which the allegations of abuse or neglect are
43 at issue.

44 2. The person is a party in a pending juvenile proceeding in which
45 the allegations of abuse or neglect are at issue.

46 3. A court or administrative law judge has made findings as to the
47 alleged abuse or neglect.

48 4. A court has found that a child is dependent or has terminated a
49 parent's rights based on an allegation of abuse or neglect.

1 G. If the court or administrative law judge in a pending proceeding
2 described in subsection F, paragraph 1 or 2 of this section does not make
3 a finding of abuse or neglect and the matter is no longer pending in that
4 forum, the person has a right to a hearing pursuant to subsection F of
5 this section.

6 H. If the court or administrative law judge in a proceeding
7 described in subsection F of this section has made a finding of abuse or
8 neglect, the finding shall be entered into the central registry as a
9 substantiated report.

10 I. If the department does not amend the information or finding in
11 the report as prescribed in subsection E of this section, the department
12 shall notify the office of administrative hearings of the request for a
13 hearing ~~no~~ NOT later than five days after completion of the review. The
14 department shall forward all records, reports and other relevant
15 information with the request for hearing within ten days. The department
16 shall redact the identity of the reporting source before transmitting the
17 information to the office of administrative hearings.

18 J. The office of administrative hearings shall hold a hearing
19 pursuant to title 41, chapter 6, article 10, with the following
20 exceptions:

21 1. A child who is the victim of or a witness to abuse or neglect is
22 not required to testify at the hearing.

23 2. A child's hearsay statement is admissible if the time, content
24 and circumstances of that statement are sufficiently indicative of its
25 reliability.

26 3. The identity of the reporting source of the abuse or neglect
27 shall not be disclosed without the permission of the reporting source.

28 4. The reporting source is not required to testify.

29 5. A written statement from the reporting source may be admitted if
30 the time, content and circumstances of that statement are sufficiently
31 indicative of its reliability.

32 6. If the person requesting the hearing fails to appear, the
33 hearing shall be vacated and a substantiated finding of abuse or neglect
34 shall be entered. On good cause shown, the hearing may be rescheduled if
35 the request is made within fifteen calendar days after the date of the
36 notice vacating the hearing for failure to appear.

37 K. On completion of the presentation of evidence, the
38 administrative law judge shall determine if ~~probable cause exists to~~
39 ~~sustain the department's finding that the parent, guardian, employee of a~~
40 ~~child welfare agency where the child was placed that was licensed by and~~
41 ~~contracted with the department at the time of the abuse or custodian~~
42 ~~abused the child or the parent, guardian or custodian neglected the child~~
43 THE PROPOSED FINDING IS SUPPORTED BY A PREPONDERANCE OF THE EVIDENCE. If
44 the administrative law judge determines that ~~probable cause exists to~~
45 ~~sustain the department's finding of abuse or neglect~~ THE PROPOSED FINDING
46 IS SUPPORTED BY A PREPONDERANCE OF THE EVIDENCE, the sustained finding
47 shall be entered into the central registry as a substantiated report. If
48 the administrative law judge determines that ~~probable cause does not exist~~
49 ~~to sustain the department's finding~~ THE PROPOSED FINDING IS NOT SUPPORTED

1 BY A PREPONDERANCE OF THE EVIDENCE, the administrative law judge shall
2 order the department to amend the information or finding in the report.

3 L. When the department is requested to verify pursuant to section
4 8-807, if the central registry contains a substantiated report about a
5 specific person, the department shall determine if the report was taken
6 after January 1, 1998. If the report was taken after January 1, 1998, the
7 department shall notify the requestor of the substantiated finding. If
8 the report was taken before January 1, 1998, the department shall notify
9 the person of the person's right to request an administrative hearing.
10 The department shall not send this notification if the person was a party
11 in a civil, criminal or administrative proceeding in which the allegations
12 of abuse or neglect were at issue. The provisions of this section shall
13 apply to the person's appeal.

14 M. The department shall provide the parent, guardian or custodian
15 who is the subject of the investigation and the person who reported the
16 suspected child abuse or neglect if that person is the child's parent,
17 guardian or custodian with a copy of the outcome of the investigation at
18 one of the following times:

19 1. If the report is unsubstantiated.

20 2. If ~~probable cause exists that abuse or neglect has occurred~~ THE
21 PROPOSED FINDING IS SUPPORTED BY A PREPONDERANCE OF THE EVIDENCE but a
22 specific person is not identified as having abused or neglected the child.

23 3. After the time to request a hearing has lapsed pursuant to
24 subsection C of this section without the department receiving a request
25 for a hearing.

26 4. After a final administrative decision has been made pursuant to
27 section 41-1092.08.

28 N. For the purposes of this section:

29 1. "Amend the finding" means to change the finding from
30 substantiated to unsubstantiated.

31 2. "Amend the information" means to change information identifying
32 the accused of having abused or neglected a child.

33 Sec. 6. Repeal

34 Section 8-811, Arizona Revised Statutes, as amended by Laws 2024,
35 chapter 127, section 5, is repealed.

36 ~~Sec. 7. Representation of children; report; requirements;~~
37 ~~delayed repeal; definition~~

38 ~~{{A. Each county office that employs attorneys who are appointed to~~
39 ~~represent children in dependency proceedings or termination of parental~~
40 ~~rights proceedings pursuant to title 8, chapter 4, Arizona Revised~~
41 ~~Statutes, shall submit a report to the governor, the speaker of the house~~
42 ~~of representatives and the president of the senate on or before January~~
43 ~~15, 2027. The report shall be compiled by month for the period of June 1,~~
44 ~~2026 through December 31, 2026 and shall include all of the following:~~

45 ~~1. The number of attorneys in each county office who are~~
46 ~~representing children in dependency proceedings or termination of parental~~
47 ~~rights proceedings.~~

48 ~~2. The average number of children who are being represented by each~~
49 ~~attorney.~~

1 3. The range of the number of dependency or termination of parental
2 rights cases that are assigned to each county office.
3 4. The number of children who are assigned to each county office by
4 case plan goal.
5 5. The number and percentage of children who are contacted in
6 person by their appointed attorney, categorized by the age of the child.
7 6. The number and percentage of children who are contacted by
8 electronic means by their appointed attorney, categorized by the age of
9 the child and the type of electronic means that was used to contact the
10 child.
11 7. The number and percentage of children who are contacted in
12 person by another member of the child's legal team, including a social
13 worker or other appropriately trained support staff, categorized by age
14 and the position of the person who contacted the child.
15 8. The number and percentage of children who are contacted by
16 electronic means by another member of the child's legal team, including a
17 social worker or other appropriately trained support staff, categorized by
18 age, the position of the person who contacted the child and the electronic
19 means that was used to contact the child.
20 9. The number and percentage of preverbal children whose placement
21 is contacted, either in person or by electronic means, by the child's
22 appointed attorney, categorized by the means that was used to contact the
23 child's placement.
24 10. The number of preverbal children whose placement is contacted,
25 either in person or by electronic means, by another member of the child's
26 legal team, including a social worker or other appropriately trained
27 support staff, categorized by the position of the person who contacted the
28 child's placement and the means that was used to contact the child's
29 placement.
30 B. This section is repealed from and after June 30, 2027.
31 C. For the purposes of this section, "electronic means" includes:
32 1. Telephone calls.
33 2. Video calls.
34 3. Email.
35 4. Text messages.}}>>

36 Enroll and engross to conform
37 Amend title to conform

SELINA BLISS

1496FloorBLISS1.docx
04/10/2026
12:11 PM
C: LAT
1300RUWOR